

GAHC010133642018



THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : CRP(I/O) 239/2018

1: BABU BISWAS
S/O BRAJA BALLAV BISWAS
R/O VILL- TOKRERCHORA PART-IV, P.O. GOLOKGANJ, P.S. GOLOKGANJ,
DIST. DHUBRI, ASSAM, PIN 783334.

VERSUS

1: TUSHAR KR. DAS AND 2 ORS.
S/O LATE MANABENDRA DAS
R/O WARD NO. 3, GOURIPUR TOWN,
P.O. GAURIPUR, P.S. GAURIPUR, DIST. DHUBRI, ASSAM, PIN - 783331.

2: RAJIB DAS
S/O LATE MANABENDRA DAS
R/O WARD NO. 3
GOURIPUR TOWN

P.O. GAURIPUR
P.S. GAURIPUR
DIST. DHUBRI
ASSAM
PIN - 783331.

3: SRI SEKHAR DAS
S/O LATE MANABENDRA DAS
R/O WARD NO. 3
GOURIPUR TOWN

P.O. GAURIPUR
P.S. GAURIPUR
DIST. DHUBRI
ASSAM
PIN - 783331

Advocate for the Petitioner : MR. S N TAMULI

Advocate for the Respondent : MR. S CHAMARIA (R1

**BEFORE
HONOURABLE MR. JUSTICE KALYAN RAI SURANA**

ORDER

Date : 06.03.2020

Heard Mr. S.N. Tamuli, learned counsel for the petitioner. None appears on call for respondents No.1, 2 and 3.

2. By this application under Article 227 of the Constitution of India, the petitioner has challenged the order dated 23.05.2018 passed by the learned Munsiff No.2, Dhubri in T.S. No. 207/2015, thereby closing the evidence of the petitioner-plaintiff and fixing the case for evidence of the defendant's side.

3. The learned counsel for the petitioner has submitted that the suit was fixed for evidence of the petitioner-plaintiff. However, on 05.01.2018, the petitioner was arrested in connection with Dhubri P.S. Case No.13/2018 corresponding to G.R. Case No.44/2018 under section 302/201/34 IPC. It is submitted that the petitioner was enlarged on bail by order dated 06.04.2018. The learned counsel for the petitioner submits that thereafter, the petitioner fell sick and could not communicate with his counsel that he was enlarged on bail by order dated 06.04.2018. Therefore, when the suit was called up for hearing on 23.05.2018, the counsel for the petitioner on a wrong notion had filed an adjournment petition, being petition No.337/2018 to project as if the petitioner was still in custody. In the absence of any document, the learned trial Court did not accept the said contention and deemed it appropriate to close the plaintiff witness and the case was fixed for the defendant's witness.

4. It is submitted that the incorrect projection before the learned trial Court was

inadvertent because as the petitioner could not communicate with his counsel, his counsel was not aware that the petitioner had been enlarged pursuant to order dated 06.04.2018.

5. Having considered such submissions and taking note of the projection that during the intervening period from 05.01.2018 to 06.04.2018, the petitioner was in judicial custody pursuant to a police case, the Court is inclined to accept the stand taken by the petitioner.

6. Accordingly, without finding any fault with the order impugned herein, this Court is inclined to provide that the learned Munsiff No.2, Dhubri shall grant one opportunity to the petitioner-plaintiff to submit the evidence of all P.W.s and if such P.W.s are filed within the time allowed, the learned Munsiff No.2, Dhubri shall permit the evidence to be kept on record and permit the cross-examination of the P.W.s.

7. It is made clear that if all the P.W.s are not submitted within the time allowed, the opportunity granted by virtue of this order would stand lapsed.

8. To enable the effectual implementation of the order, the Court is inclined to modify the impugned order dated 23.05.2018 in terms of this order as indicated hereinabove.

9. The petitioner shall appear before the Court of learned Munsiff No.2, Dhubri on 02.04.2020 and on such appearance, the said learned Court shall fix a date for filing of all the P.W.s by the petitioner.

10. This application stands allowed on the aforesaid terms.

11. No order as to cost.

JUDGE

Comparing Assistant